



CHAPTER xxxix.

An Act to authorise the closing of the church of Saint Olave Southwark and the sale of part of the site and churchyard thereof and the Saint Olave's Rectory the extinction of the ecclesiastical parish of Saint Olave Southwark and the merger thereof in other parishes and for other purposes. A.D. 1918.
[8th August 1918.]

WHEREAS by an Act passed in the fifty-seventh year of the reign of King George the Third intituled "An Act for making better provision for the support and maintenance of the Rector of the Parish of Saint Olave in the Town and Borough of Southwark and for providing a more convenient Rectory or Parsonage House for the said Rector" (in this Act referred to as "the Act of 1817") the rector and churchwardens and overseers of the poor for the time being of the parish of Saint Olave Southwark together with other persons therein mentioned were appointed Trustees for carrying the said Act into execution :

And whereas the Act of 1817 empowered the said Trustees out of the moneys to be raised by the rate to be assessed and levied as by the said Act provided to pay to the rector of the said parish for the time being the annual sum of six hundred pounds in lieu and in full recompense and satisfaction of and for all tithes and compositions or payments for tithes and Easter offerings and for all obventions and oblations due or payable to such rector and to provide within the said parish out of moneys to be raised under the powers of the said Act a suitable residence for the rector of the said parish and his successors and declared that so soon as the new rectory or parsonage house had been provided and the conveyance thereof enrolled as by

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A.D. 1918. — the said Act required the same should thereupon and from thenceforth be and for ever remain vested in the rector of the said parish for the time being in such manner as is in the said Act mentioned :

And whereas the said Trustees were by the said Act further empowered so soon as the new rectory or parsonage house had been so provided and the conveyance thereof duly enrolled as aforesaid by and with the consent and approbation of the King's most Excellent Majesty as patron of the said rectory and by and with the consent and approbation of the lord bishop of the diocese to take down the then present rectory or parsonage house and to convert and apply the site and ground thereof and to sell the materials thereof in such manner as to the said Trustees should seem proper :

And whereas the said Trustees were by the Act of 1817 empowered from time to time to levy a rate on every person who should inhabit hold use occupy possess or enjoy any lands hereditaments or other property within the said parish as were in the said Act mentioned not exceeding ninepence in the pound upon the annual rent or value of such lands hereditaments or other property and to apply such rate in payment (inter alia) of the sum by the said Act directed to be paid to the said rector as hereinbefore mentioned and all incidental expenses attending the execution of the said Act :

And whereas by the said Act the said Trustees were empowered to appoint such officers and servants as they should think necessary for carrying the said Act into execution :

And whereas the said payments to be made to the said rector have since the passing of the Act of 1817 been defrayed out of rates levied by the authority thereof and the said Trustees under such authority duly provided a new rectory or parsonage house and by a deed dated the seventh day of July one thousand eight hundred and forty-six conveyed the site of the said old rectory or parsonage house to the rectors and churchwardens of the parishes of Saint Olave and Saint John Horsleydown to be held by them jointly as part of the churchyard of the parish of Saint Olave :

And whereas by the conversion of dwelling-houses into shops and warehouses and otherwise the resident population of the said parish of Saint Olave has greatly diminished and the population

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of other parishes in the diocese of Southwark has greatly increased and is insufficiently accommodated by existing churches: A.D. 1918.

And whereas it is expedient that the existing church of the said parish (except the tower thereof) should be removed and that the materials thereof (except those of the said tower) and a portion of the site of the said church and of the said churchyard attached thereto should be sold and that provision should be made for a new church or churches elsewhere in the said diocese and that the said parish should for all ecclesiastical purposes be united with and merged in certain adjacent parishes:

And whereas it is expedient for the purposes aforesaid that Trustees should be appointed with power to sell a portion of the said church and portions of the site thereof and of the said churchyard and with power to sell the said rectory or parsonage house provided under the Act of 1817 and the site of and the lands held with the same:

And whereas the site of the old church is of antiquarian interest and it is expedient that provision should be made for the preservation of the tower thereof and for the maintenance of a portion of the site of the old church and of the said churchyard as a public open space and for the perpetuation of the name of Saint Olave in connexion with such site:

And whereas it is expedient to make provision for the redemption of the said rate and to empower the said last-mentioned Trustees for that purpose to enter into and carry into effect arrangements with persons liable to pay the same or the owners of or other persons interested in property in respect of which the same is leviable for the redemption thereof by money payments to be applied in manner by this Act provided and to transfer to such last-mentioned Trustees the powers rights duties and liabilities of the Trustees under the Act of 1817 in the manner and as provided by this Act:

And whereas the Right Honourable David Lloyd George Prime Minister and First Lord of His Majesty's Treasury on behalf of and as representing His Majesty the King as patron of the said church has consented to the provisions of this Act:

And whereas the Right Reverend Hubert Murray Lord Bishop of Southwark in whose diocese and jurisdiction the parish of Saint Olave is situate has consented to the provisions of this Act:

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And whereas the Ecclesiastical Commissioners for England have consented to the provisions of this Act :

And whereas the Reverend Oswald Craig canon of Southwark Cathedral the present rector of Saint Olave's Southwark has with the consent as aforesaid of the Right Honourable David Lloyd George as such first lord as aforesaid consented to the provisions of this Act :

And whereas the present clerk to the Trustees under the Act of 1817 has agreed to relinquish his office and has consented to the provisions of this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament:—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Saint Olave's Southwark Church Act 1918.

Interpretation.

2. In this Act unless the context otherwise requires—

“The Act of 1817” means an Act passed in the fifty-seventh year of the reign of King George the Third intituled “An Act for making better provision for
“ the support and maintenance of the Rector of the
“ Parish of Saint Olave in the Town and Borough
“ of Southwark and for providing a more convenient
“ Rectory or Parsonage House for the said Rector”;

“The old church” means the church of Saint Olave Southwark in the metropolitan borough of Bermondsey ;

“The saleable estate” means the old church and the site thereof and the churchyard attached or belonging to the old church (including the site of the rectory or parsonage house existing at the passing of the Act of 1817) and any lands or vaults attached or belonging thereto except the tower of the old church and that part of the said churchyard and of the site of the old church on which the erection of buildings is prohibited by the section of this Act of which the

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marginal note is "Part of sites of old church and old churchyard not to be built upon"; A.D. 1918.

"The bishop" means the lord bishop of Southwark for the time being;

"The Commissioners" means the Ecclesiastical Commissioners for England;

"The Trustees" means the Trustees constituted by or under this Act;

"The borough council" means the council of the metropolitan borough of Bermondsey;

"The appointed date" means the date fixed by the bishop under this Act for the closing and disuse for divine service of the old church.

3.—(1) The following persons (that is to say):—

Trustees for
purposes of
Act.

The bishop;

The Reverend Canon Oswald Craig;

Owen Hugh Smith;

Robert Fells;

Charles Oscar Gridley;

Oswald Cecil Magniac;

Harry Lloyd;

shall be Trustees for the execution of the powers and duties conferred and imposed on or transferred to them by this Act by the name or style of the Trustees of the Saint Olave's Southwark Church Act 1918.

(2) The Trustees shall fill any vacancy occurring by death resignation or otherwise among the Trustees other than the bishop by the appointment of a fit lay person or a person in holy orders according as the vacancy occurs among the lay Trustees or the Trustees in holy orders but the Trustees may at all times act notwithstanding the existence of any vacancy or vacancies in their number unless reduced below three in which case they shall not exercise any of the powers of this Act except that of appointing new Trustees.

(3) Every Trustee shall be a member of the Church of England and if he ceases to be such he shall cease to be a Trustee.

(4) The Trustees shall have an official seal and shall by standing order or byelaw provide for its custody and use Any

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A.D. 1918. deed to which the Trustees are parties shall be well and sufficiently executed on behalf of the Trustees if the seal be affixed thereto in the presence of two Trustees testified by their signatures.

Meetings
and pro-
ceedings of
Trustees.

4.—(1) Three Trustees must be personally present to constitute a meeting of the Trustees for the transaction of business.

(2) At their first meeting after the passing of this Act and at such time as they may determine in every subsequent year the Trustees shall appoint one of their number to be chairman and another to be vice-chairman for the period of twelve months from the date of the meeting or such other period as they may determine.

(3) The chairman shall preside at all meetings of the Trustees at which he is present.

(4) If at any meeting of the Trustees the chairman be not present the vice-chairman shall take the chair but if there be no vice-chairman or if the vice-chairman be not then present the Trustees then present shall choose one of themselves to take the chair at that meeting.

(5) The chairman or any three Trustees may at any time summon a meeting of the Trustees.

(6) Questions arising at a meeting of the Trustees shall be decided by a majority of votes and in case of an equality of votes the Trustee in the chair shall have a second or casting vote.

(7) Subject as aforesaid the Trustees may meet together for the dispatch of business adjourn and otherwise regulate the proceedings of the Trustees as the Trustees from time to time think fit and may make standing orders or byelaws for the purpose.

Office of
Trustee not
to disqualify
in certain
cases.

5.—(1) Any Trustee appointed under this Act may act as a Trustee notwithstanding that he may be an owner lessee or occupier of or otherwise interested in any of the lands tenements hereditaments or other property referred to in section 27 of the Act of 1817 or this Act.

(2) No Trustee appointed under this Act shall be disqualified by reason of his being such a Trustee from entering into any contract or agreement with or from purchasing or acquiring any lands or property or any interest therein from the Trustees

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Provided always that no Trustee shall vote at any meeting of the Trustees on any question affecting any contract agreement or purchase in which he is interested or concerned (otherwise than as a Trustee under this Act) and if he does so vote his vote shall not be counted. A.D. 1918.

6. The old church shall be closed and disused for divine service at such date as may be fixed by the bishop by order under his hand and seal. Closing of
old church.

7.—(1) From and after the appointed date the saleable estate and the ornaments fittings and furniture of the old church (subject as hereinafter mentioned) including any pictures in the vestry thereof and any rights attached or belonging to the saleable estate as well as the rectory or parsonage house provided under the Act of 1817 together with the outbuildings garden and premises thereto belonging and any rights attached or belonging thereto shall be respectively subject to an absolute power of sale (but subject to any leases or tenancies subsisting at the time of such sale in the saleable estate or in any such rights outbuildings garden or premises) to be exercised by the Trustees as in this Act provided. Power of
sale.

(2) From and after the appointed date the Trustees shall until the sale of the saleable estate as hereinafter mentioned have (subject as in this Act provided) all such rights of entry and control over the old church and over all other things in connexion therewith made by the immediately preceding subsection subject to a power of sale as if they were the owners thereof.

(3) As soon as conveniently may be after the appointed date the Trustees with the consent of the Commissioners shall sell the saleable estate or shall demolish the portion of the old church forming part thereof and sell the materials thereof and any other part of the saleable estate (but subject to any leases or tenancies of any part of the saleable estate then existing) and the ornaments fittings and furniture of the old church (subject as in this Act provided) either together or in lots and in such manner at such times and on such terms and conditions as they shall think fit freed and discharged from all ecclesiastical and subject as is by this Act provided from all other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights or interests of the owners of any seats or pews

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A.D. 1918. or of any other person and may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid.

(4) The sale of the saleable estate shall be subject to any terms and conditions relating thereto set out in this Act and shall be taken to be upon the condition that the purchaser shall within three months from the completion of the sale wholly demolish every part of the old church then existing and forming part of the saleable estate and on breach of such condition such sale shall be void and any moneys paid in respect thereof shall be forfeited to the Trustees.

(5) Every assurance of land executed by the Trustees under this section shall be registered in the episcopal registry of the diocese of Southwark and shall be effectual without the concurrence or consent of any other person.

(6) The Trustees shall after the sale of the saleable estate pay over to the Commissioners out of the proceeds of such sale any capital moneys required by the Commissioners for the purpose of meeting the annual payment referred to in subsection (2) of the section of this Act of which the marginal note is "Commissioners may form funds to meet annual payments."

Receipt of
Trustees.

8. Every receipt signed by the Trustees or any three of them shall effectually discharge the purchaser of any land material or other property under the powers of this Act from the amount of money expressed in such receipt to have been received and from being answerable for or bound to see to the application thereof.

Part of sites
of old church
and old
churchyard
not to be
built upon.

9.—(1) Nothing contained in this Act shall be deemed to allow any building to be erected on so much of the disused burial ground forming the churchyard attached to the old church and of the site of the old church being not less than one half of the whole area of the existing churchyard and church site as is delineated and edged with a blue line on a plan signed in duplicate by the Lord Muir Mackenzie Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited in the Parliament Office of the House of Lords and the other in the Private Bill Office of the House of Commons but the area so excepted from building and any rights attached or belonging thereto shall as from the appointed day be by

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virtue of this Act vested in the borough council for enjoyment by the public and shall be maintained and managed by the borough council as an open space under the provisions of the Open Spaces Act 1906 under the name of St. Olave's Garden but subject to any lease or tenancy subsisting at the appointed day. A.D. 1918.

(2) The Trustees as soon as may be after the appointed day shall demolish or secure the demolition of that part of the old church (other than the tower) which is situate on the area so excepted from building.

(3) The area so vested in the borough council shall include the old church tower which shall not be demolished but shall be maintained by the borough council both as a memorial and for the purpose of affording an access from Tooley Street to such open space.

(4) The borough council shall use their best endeavours to secure the removal of the obstructions between St. Olave's Garden and the River Thames.

10. The Trustees body or person in whom the site of the old church and churchyard or any part thereof is for the time being vested shall— For protection of London County Council.

- (a) carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the excavation of the said site and subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person place any such objects at the disposal of the London County Council;
- (b) give sufficient notice in writing to the said council of the time when any excavations in the said site are to be made;
- (c) give to the said council facilities for the inspection and making drawings of any ancient foundations that may be discovered in the said site; and
- (d) make provision by any deed by which they may sell or otherwise dispose of the said site for securing compliance with the provisions of this section.

11. The Trustees shall remove from the old church after the appointed date and before the sale of any part thereof the font holy table and plate thereof and shall sell or dispose of Disposal of certain church ornaments and furniture.

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A.D. 1918. the same as the bishop may in writing direct but not otherwise
Such disposition shall be good and effectual in law The Trustees
may if they think fit in lieu of selling any other ornaments
fittings or furniture including stained or painted glass and
pictures remove and dispose of the same in manner provided by
this section as to the font holy table and plate.

Disposal of
registers and
other docu-
ments.

12. All registers deeds records books and documents belong-
ing to or kept in the old church shall after the appointed date
and before the sale of any part thereof be removed by the
Trustees to the church of Saint John Horsleydown in the diocese
of Southwark (which shall thenceforth be called and known as
the church of Saint Olave and Saint John Southwark) and shall
be securely kept with the registers and other documents of the
said church Provided that the duplicate marriage registers
current at the old church at the appointed day shall be sent
by the Trustees to the Registrar-General to be closed officially
and thereafter one of the said marriage registers shall be kept
at the said church of Saint Olave and Saint John Southwark
and the other of the said marriage registers shall be deposited
with the superintendent registrar of Saint Olave Bermondsey
Registration District.

Removal
of human
remains.

13.—(1) If and when the Trustees shall sell the saleable
estate they shall before the completion of the sale thereof
remove or cause to be removed the remains of all deceased
persons interred therein or in any vault therein.

(2) Before proceeding to remove any such remains the
Trustees shall publish a notice for three successive days in two
local newspapers circulating in the metropolitan borough of
Bermondsey to the effect that it is intended to remove such
remains and such notice shall have embodied in it the
substance of subsections (3) (4) (5) (6) and (7) of this
section.

(3) Any time within two months after the first publication
of such notice any person who is an heir executor administrator
or relative of any deceased person whose remains are interred
in the saleable estate may give notice in writing to the Trustees
of his intention to undertake the removal of such remains and
thereupon he shall be at liberty without any faculty for the
purpose but subject as hereinafter mentioned to any regulations
made by the bishop to cause such remains to be removed to

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and re-interred in any consecrated burial ground or cemetery in which burials may legally take place. A.D. 1918.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Trustees that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Southwark who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one vault or grave the sum of ten pounds) shall be defrayed by the Trustees such sum to be apportioned if necessary equally according to the number of remains in the vault or grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Trustees in respect of the remains in any vault or grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the Trustees may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as the Trustees think suitable for the purpose subject to the consent of the bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this Act shall at the expense of the Trustees be removed and re-erected at the place of re-interment of such remains or at such place within the metropolitan borough of Bermondsey as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Trustees.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the metropolitan borough of Bermondsey.

14. From and after the appointed date the office of minister or incumbent of the old church as well as every other office in connexion with such church and the advowson or right of presentation or appointment thereto or to the incumbency of

Extinction
of incum-
bency and
other offices
of old church.

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A.D. 1918. — the said parish of Saint Olave respectively shall cease and be extinguished.

Sale of rectory &c.

15.—(1) As soon as conveniently may be after the appointed date the Trustees with the consent of the Commissioners shall sell the rectory or parsonage house provided under the Act of 1817 and the site thereof together with the outbuildings gardens and premises thereto belonging in one or more lots and in such manner at such times and on such terms and conditions as the Trustees may think fit freed and discharged from all ecclesiastical and other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights or interests therein and may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid.

(2) Every assurance of land executed by the Trustees under this section shall be registered in the episcopal registry of the diocese of Southwark and shall be effectual without the concurrence or consent of any other person.

Merger of district of old church in adjacent parishes.

16. As and from the appointed date the ecclesiastical district now attached or assigned to the old church shall cease to be a separate ecclesiastical district and so much of the said district as lies to the north or north-east of an imaginary line drawn along the centre of that portion of Saint Thomas Street which lies within the said ecclesiastical district shall for all ecclesiastical purposes be united with and merged in the parish of Saint John Horsleydown in the diocese of Southwark which parish shall thenceforth be called and known as the parish of Saint Olave and Saint John Southwark and so much of the said district as lies to the south or south-west of the said imaginary line shall for all ecclesiastical purposes be united with and merged in the parish of Saint Paul Bermondsey in the said diocese and each of the said parts of the said district so united and merged as aforesaid shall form part of the benefice and cure of souls of the parish with which it is united under this section.

Application of purchase money.

17. All moneys received by the Trustees for the sale of any land materials or other property under this Act shall be applied as follows:—

(1) In payment of the costs charges and expenses of and incidental to the preparing applying for obtaining

and passing of this Act and in the payment of the expenses of sale of the land materials and other property aforesaid and the expenses of the removal and re-interment of human remains under the provisions of this Act and of the removal and re-erection and custody of any monuments fittings furniture registers or other documents of the old church: A.D. 1918.

- (2) In making provision for the payment of any permanent outgoings which may at the time of the passing of this Act be charged on the benefice of Saint Olave Southwark and of the annual payments to Queen Anne's Bounty under the section of this Act of which the marginal note is "Application of rates" under Act of 1817 and moneys paid in redemption "thereof" and the annual sums hereinafter directed to be paid to the person being the minister or incumbent of the old church until that office is extinguished under this Act and to the person being the minister or incumbent of the old church whose office is extinguished under this Act and to the rector for the time being of the parish of Saint Olave and Saint John Southwark and to the vicar of the parish of Saint Paul Bermondsey aforesaid and after the cessation of the said annual sum to be paid to the person being such minister or incumbent whose office is extinguished as aforesaid in making such provision for the payment of the stipend of a person to be designated as the canon missionary of Southwark Cathedral as is hereinafter mentioned in this Act in so far as any moneys out of which any of such payments respectively are hereinafter directed to be made may be insufficient to meet such payments:
- (3) In the payment to the present clerk to the Trustees under the Act of 1817 of the sum of five hundred pounds in consideration of his relinquishing his office as such clerk and in payment to any other persons engaged at the date of the passing of this Act in church work in the ecclesiastical district now assigned or attached to the old church of such sums not exceeding in the aggregate one hundred pounds as the bishop shall determine;

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- (4) In defraying any expenses of the Trustees in the execution of this Act which are not otherwise by this Act provided for or which any moneys by this Act applicable thereto may be insufficient to meet:
- (5) In or towards the purchase and laying out of lands in a district within the diocese of Southwark to be approved by the bishop as a site for and in or towards the erection and completion of a new church with all proper approaches fittings ornaments and conveniences and the consecration thereof and in or towards the purchase of a site for and the erection of a suitable rectory or residence for the minister of the said new church and the conveyance of the said new church and rectory or residence to the Commissioners and in payment of all costs and expenses in connexion with such matters:
- (6) In providing for an endowment of and in connexion with the said new church in such manner as the Trustees shall think proper to the extent of five hundred pounds a year.

Any balance of any such moneys remaining in the hands of the Trustees shall be transferred by them to the Commissioners who shall apply the same in or towards any one or more of the following purposes (that is to say) The endowment or augmentation of the endowment of any poor benefices of any ecclesiastical parishes or districts in the diocese of Southwark having a population of not less than six thousand or the building provision or endowment of a church or churches in the said diocese or the building or provision of houses of residence for clergy in the said diocese or the constitution and endowment of separate districts or parishes for ecclesiastical purposes in the said diocese as the Commissioners shall from time to time with the approval of the bishop determine.

Patronage of
new church
vested in
Crown.

18. It is hereby declared and enacted that the advowson or right of patronage and presentation of or to the new church to be provided by the Trustees under the last preceding section of this Act is vested in His Majesty His heirs and His successors.

Transfer of
powers of
Trustees
under Act
of 1817.

19.—(1) Subject to the provisions of this Act all the powers rights duties and liabilities vested in or exerciseable by or imposed on the Trustees under the Act of 1817 are on and

from the date of the passing of this Act hereby transferred to A.D. 1918.
and vested in and shall be exerciseable by the Trustees and
any reference in the Act of 1817 to the Trustees thereunder
shall after the passing of this Act be deemed to refer to the
Trustees and all books documents or other property at the date
of the passing of this Act vested in or belonging to the Trustees
under the Act of 1817 are hereby vested in the Trustees as
from that date to the same extent and for the same estate and
interest as the same were previously vested in the Trustees
under the Act of 1817 and may be held and enjoyed sued for
and recovered dealt with and disposed of by the Trustees
subject and according to the provisions of the Act of 1817
as amended by this Act.

(2) Subject to the provisions of this Act it shall be the
duty of the Commissioners to and they may require the Trustees
to exercise all powers conferred upon the Trustees under the
Act of 1817 with reference to the rates provided for by that
Act and the assessment and collection and recovery of the
same.

20. The persons who were the Trustees under the Act of
1817 immediately before the passing of this Act shall as and
from the date of the passing of this Act cease to be such
Trustees and shall be released from all further duties obligations
and liabilities as such Trustees in relation to the execution of
the powers of the Act of 1817. Dissolution
of Trustees
under Act
of 1817.

21. Save as is by this Act otherwise expressly provided— Saving for
acts done
under Act
of 1817.

(1) Everything before the date of the passing of this
Act done suffered and confirmed respectively under
the Act of 1817 shall be as valid as if this Act
had not been passed:

(2) All deeds agreements or contracts entered into or
made at the date of the passing of this Act
and all obligations and liabilities incurred before
the said date by the Trustees under the Act of
1817 may be enforced as fully and effectually by
or against the Trustees as they would or might
have been enforced by or against the Trustees
under the Act of 1817 if this Act had not been
passed:

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(3) Any action suit prosecution or other proceeding commenced before the date of the passing of this Act by or against the Trustees under the Act of 1817 or any person representing them may be continued by or against the Trustees.

Redemption
of rates levi-
able under
Act of 1817.

22.—(1) The Trustees and any owner lessee or occupier of or other person interested in any land tenement hereditament or other property referred to in section 27 of the Act of 1817 which is subject to any rate leviable under the said Act (including persons acting in a fiduciary capacity) may from time to time enter into and carry into effect agreements for the redemption of the rate upon such land tenement hereditament or other property on payment to the Trustees of such sum (not exceeding in the case of any land tenement hereditament or other property existing at the date of the passing of this Act twenty times the amount of the rate assessed on such land tenement hereditament or other property in respect of the year ending on the twenty-fourth day of April one thousand nine hundred and eighteen) as may be agreed upon with the approval of the Commissioners between the Trustees and such owner lessee occupier or other person.

(2) From and after any such payment to the Trustees no rate shall be leviable under the Act of 1817 or this Act on any land tenement hereditament or other property in respect of which the payment is made and the Trustees shall give a certificate under their common seal of such redemption in which the land tenement hereditament or other property in respect of which such redemption has been made shall be properly described and such certificate shall be sufficient evidence of such redemption.

(3) If and so often as any such redemption as is referred to in this section is made the amount authorised to be raised annually by rates under the Act of 1817 shall from and after such redemption be diminished by the amount of the rate included in the rate book for the year ending the twenty-fourth day of April one thousand nine hundred and eighteen in respect of the land tenement hereditament or other property in respect of which the redemption is made and thereafter such amount as so diminished from time to time shall be deemed to be the annual amount to be raised by rates under the Act of 1817 and this Act and shall from time to time be raised

collected and paid in respect of the like property and by like persons subject to the like conditions in like manner and with the like remedies as though the said amount as so diminished had been the amount leviable by rates under the Act of 1817 in the first instance and as though the property in respect of which the redemption was made had not been liable thereto. A.D. 1918.

(4) For the purposes of the Act of 1817 and this section the rate assessed on any land tenement hereditament or other property for the year ending on the twenty-fourth day of April one thousand nine hundred and eighteen shall be deemed to be the rate appearing as assessed thereon in the rate book for that year prepared for the purposes of the Act of 1817 and such rate book shall unless the contrary be proved be conclusive evidence of anything appearing therein without further or other proof.

23. The Trustees shall pay over to the Commissioners the net proceeds of the rates from time to time levied by them under the Act of 1817 and this Act (after payment of any expenses of the Trustees in relation to the levying thereof) and any moneys received by the Trustees under the section of this Act of which the marginal note is "Redemption of rates leviable under Act of 1817" and such net proceeds and the income or annual proceeds of any such last-mentioned moneys shall be applied by the Commissioners as follows:—

Application
of rates
under Act
of 1817 and
moneys paid
in redemp-
tion thereof.

(1) In payment to the person for the time being the minister or incumbent of the old church of the annual sum of six hundred pounds until the office of such minister or incumbent is extinguished under this Act:

(2) In payment of the annual sum of ten pounds four shillings and eightpence to Queen Anne's Bounty on the twenty-fifth day of December in each year in commutation for the first fruits and yearly tenths heretofore payable in respect of the benefice of Saint Olave Southwark the first of such payments to be made on the twenty-fifth day of December next following the extinguishment of the office of the minister or incumbent of the old church:

(3) In payment to the person being the minister or incumbent of the old church whose office is extinguished under

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A.D. 1918.

this Act of the annual sum of three hundred pounds during his life :

- (4) In payment to the rector for the time being of the parish of Saint Olave and Saint John Southwark of the annual sum of one hundred and fifty pounds and to the vicar for the time being of the parish of Saint Paul Bermondsey in the diocese of Southwark of the annual sum of seventy-five pounds :
- (5) In payment after the cessation of the said annual payment to the person being the minister or incumbent of the old church whose office is extinguished under this Act of an annual sum not exceeding three hundred pounds a year as or towards the stipend of any person who may from time to time be designated by the bishop to the Commissioners as the canon missionary of Southwark Cathedral :
- (6) To such ecclesiastical purposes in the diocese of Southwark and in such manner as the bishop may approve :
- (7) The provisions of the thirteenth and fifteenth sections of the Incumbents Resignation Act 1871 shall apply to the payment of the annual sum of three hundred pounds to be made under this Act to the person being the minister or incumbent of the old church whose office is extinguished under this Act for his life as if such annual sum had been a pension awarded under the said Act of 1871 and as if the Commissioners were the incumbent of the benefice referred to in the said fifteenth section of the said Act of 1871.

Commis-
sioners may
form funds
to meet
annual pay-
ments.

24.—(1) The Commissioners may appropriate and set aside out of any moneys received by them under the powers of this Act such sums as the Commissioners shall think fit in or towards the formation of such funds as the Commissioners may in their discretion decide to form for the purpose of producing any annual sum or the respective annual sums referred to in the section of this Act of which the marginal note is “Application of rates under Act of 1817 and moneys paid in redemption thereof.”

(2) The Commissioners shall as from the date of the completion of the sale of the saleable estate pay to the rector and churchwardens for the time being of the parish of Saint Olave and Saint John Southwark an annual sum of twelve pounds and ten shillings in lieu of and in satisfaction for all or any sums now received or receivable by the rector and churchwardens of that parish as such out of or arising out of any lands or property which the Trustees are by this Act authorised to sell and dispose of and the Commissioners may at their discretion appropriate and set aside out of any moneys received by them and being the proceeds of the sale of any land materials or other property sold under this Act such sum or sums as the Commissioners may in their discretion think fit in or towards the formation of a fund of such amount as the Commissioners shall consider will be sufficient to produce the said annual sum of twelve pounds and ten shillings so to be paid to the rector and churchwardens for the time being of the said last-mentioned parish. A.D. 1918.

(3) Any moneys appropriated and set aside to form any such fund as is mentioned in this section may be invested in any securities in which trustees are for the time being authorised to invest trust moneys but not otherwise.

25. Sections 2 to 6 inclusive 10 to 24 inclusive and 26 of the Act of 1817 are hereby repealed. Repeal of certain provisions of Act of 1817.

26. Save so far as is provided by the section of this Act of which the marginal note is "Redemption of rates leviable under Act of 1817" nothing contained in this Act shall in any way take away or limit any liability imposed by the Act of 1817 to payment of any sum leviable by rate under that Act and any such sum may be assessed collected sued for and recovered by the Trustees and the Trustees may exercise any power or do any act relating to any such matter in all respects as if the Trustees were referred to in the Act of 1817 in the place of the Trustees referred to in that Act. Saving powers under Act of 1817.

27. Nothing in this Act shall be deemed to derogate from any rights powers or authorities of the Port of London Authority or to authorise the execution of any work on in over or under or any interference with the bed or shore of the River Thames below high water except with the licence of the said authority Saving rights of Port of London Authority.

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Act, 1918.

A.D. 1918. in accordance with the provisions of the Thames Conservancy
— Act 1894 and the Port of London Act 1908.

Saving for
parochial
charities.

28. Nothing in this Act shall extend restrict or alter the
scope and application of the benefits of any parochial charity.

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